LAW & MOTION CALENDAR
TENTATIVE RULINGS

September 3, 2026

Judge R. Shawn Nelson
Department C10

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.
Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.
Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit to the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.
Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).
Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.
The public may attend hearings by coming to court or via remote access as described above.
Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.
Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit to the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
1:30 p.m.		
1	Miller vs. FCA US LLC	Plaintiff Shuan Isaac Miller's motion for attorneys' fees and costs is **GRANTED**, subject to the deductions below. The court awards Plaintiff attorneys' fees in the total amount of <u>$30,687.50.</u> The court awards costs in the total amount of <u>$6,638.55.</u> Plaintiff's objections are OVERRULED. **<u>Basis for Attorneys' Fees</u>** A party seeking an award of fees has the burden of establishing entitlement to an award, documenting the appropriate hours spent, the hourly rates, and that the fees sought were reasonable and necessary to the conduct of the

		litigation. (*569 E. County Blvd. LLC v Backcountry Against the Dump, Inc*. (2016) 6 Cal.App.5th 426, 432). Here, Plaintiff contends that he is entitled to attorneys' fees pursuant to the Code Civ. Proc. § 998 offer and Civ. Code § 1794, subd. (d). Defendant does not dispute that Plaintiff is entitled to fees. **<u>Reasonable Hourly Rate</u>** The lodestar method for calculating attorneys' fees applies to any statutory attorneys' fees award, unless the statute authorizing the award provides for another method of calculation. (*Galbiso v. Orosi Pub. Util. Dist*. (2008) 167 Cal.App.4th 1063, 1089; see also *K.I. v. Wagner* (2014) 225 Cal.App.4th 1412, 1425.) When determining a reasonable attorneys' fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the reasonable hourly compensation of each attorney. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998). The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal. 4th 1084, 1095.). The court finds that counsel's rates of $500 per hour and the paralegal rates of $200 and $225 per hour are reasonable. (See Decl. of Meehan, ¶ 13; Decl. of Goethals, ¶¶ 7 and 13). **<u>Lodestar multiplier</u>** In determining whether to apply a multiplier, the court considers a variety of factors such as the novelty and difficulty of the issues presented, the skill displayed in presenting them, the extent to which the nature of the litigation precluded other employment by the attorneys, and the contingent nature of the fee award. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132; *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 154.) The court is not required to impose a multiplier; the decision is discretionary. (*Galbiso, supra*, 167 Cal.App.4th at 1089.) The court declines to award a multiplier. **<u>Hours Reasonably Expended</u>** "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v Board of Trustees of California State University* (2005)132 Cal.App.4th 359, 396; *Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel are also "sufficient to meet the burden of establishing the reasonableness of the

fees incurred, without the need to produce copies of counsel's detailed billing statements.”].)

In this matter, Mr. Goethals attached the invoices and a spreadsheet summary. (See Decl. of Goethals, ¶¶ 15 and 16, Exs. 27 and 28). Excluding the request for a multiplier, Plaintiff requests $31,087.50 for 77.5 hours of attorney and paralegal work, which includes the anticipated time to prepare the Reply.

The Court will reduce the hours it determines were excessive or not supported. (*Levy v. Toyota Motor Sales, U.S.A., Inc*. (1992) 4 Cal.App.4th 807, 816 [party seeking attorney fees has the “burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount” (internal quotation marks omitted)]). Fee award amounts are matters within the trial court’s discretion: the “trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.” (*Ketchum, supra,* 24 Cal.4th at 1132.)

Furthermore, “[t]rial courts retain discretion to penalize block billing when the practice prevents them from discerning which tasks are compensable and which are not.” (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1010).

Defendant contests the following billable work as unreasonable and/or excessive:

-2.1 hours ($1,050) billed by Mr. Goethals for “[t]echnical research re: issues with vehicle recalls, technical service bulletins, and customer complaints. Prepare memo re cause of actions to include in complaint and pertinent legal issues.” Defendant contends that this is extensive research into routine issues that arise in virtually every Song-Beverly action. The court finds that 2.1 hours for this work is not unreasonable.

-1.3 hours ($650) by Mr. Goethals to “[r]eview repair orders, ROS, and summary of client communication with manufacturer/dealership. Prepare memo re general discovery plan and specific witnesses to depose.” Defendant contends this work is premature because Plaintiff was developing a discovery strategy before reviewing Defendant’s discovery responses. This also appears to be block-billing, and it cannot be determined which amount was incurred for preparing the memo versus reviewing the documents. The court deducts .8 and awards .5 hours ($250) for this work.

-2.1 hours ($1,050) by Ms. Meehan to “[r]eview case file in preparation for drafting complaint; revise and revise complaint.” Defendant contends that this is duplicative and block-billing, and that Mr. Goethals and a paralegal spent a collective time of approximately 10 to 15 hours reviewing the same materials. However, Defendant does not specify which entries total this “10 to 15 hours” amount. There are various document review entries by paralegals, but only 2 entries for actually drafting/revising the complaint (.3

		by paralegal Mr. Womack and the 2.1 entry by Ms. Meehan). The court finds this reasonable. -2.1 hours ($1,050) by Ms. Meehan to "[r]eview FCA doc production and analyze same; draft outline for FCA PMQ depo; continue to analyze doc production and refining outline for depo." Defendant contends that Ms. Meehan repeatedly billed for analyzing the same document production while simultaneously drafting and refining the PMQ outline. However, there appears to be only one other entry (.6) relating to deposition preparation before this deposition was taken. The court finds this total time to be reasonable. -2.1 hours ($1,050) by Ms. Meehan to "[r]eview Orange Coast CDJR's responses to Plaintiff's discovery requests, set on; review document production; draft meet and confer letter to defense counsel re in sufficient responses." Defendant contends that this is block-billing and that the meet and confer likely concerned routine discovery issues. The court finds this time reasonable for review of documents and preparing a meet and confer letter regarding the same. -.1.5 hours ($750) by Ms. Meehan to "[r]eview and revise mediation brief." Defendant contends that this is duplicative of work by the paralegals who spent 1.8 hours to draft the mediation brief. However, a total time of 3.3 hours on a mediation brief is not unreasonable. -3.6 hours and 1.2 hours by Ms. Meehan for deposition preparation of OC CDJRF employees. Defendant contends that the hours expended preparing for the technician deposition are excessive and unreasonable, and that the CDJR technician depositions involve substantially the same exhibits and largely the same questions. However, the court finds that 4.8 hours in total for this work is reasonable. Finally, Defendant contests the total of 6.5 hours submitted to the court in anticipated attorney time (4.5 attorney hours and 2 paralegal hours), because this time has not been incurred. In support of the Reply, Plaintiff submits the declaration of Ms. Meehan who declares: "I personally spent 4.5-hours reviewing FCA's Opposition and the Santana Declaration, researching and preparing Plaintiff's Reply Memorandum, preparing Plaintiff's Objections to the Declaration of Alexis C. Santana, and preparing this declaration. OLG's paralegals spent an additional 2.0-hours on those tasks." (Decl. of Meehan, ¶ 3). The court will award this amount. Pursuant to the above, the deductions total $400, and the total fee award is $30,687.50. **<u>Costs</u>** Plaintiff seeks costs in the amount of $6,638.55 and filed a memorandum of costs on 5/12/26. Defendant did not file a motion to tax costs. (See Cal. R.

		Ct., rule 3.1700, subd. (b)(1)). Accordingly, Plaintiff is awarded the total cost amount of $6,638.55. Plaintiff shall give notice.
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3	Ticey vs. JPMorgan Chase Bank N. A.	The Motion for Preliminary Injunction brought by Plaintiffs Troy Ticey and Cynthia Ticey is **DENIED**. An injunction may be granted "[w]hen it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of…" (Code Civ. Proc., § 526, subd. (a)(1).) "In deciding whether to issue a preliminary injunction, a court must weigh two 'interrelated' factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction." (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678.) "The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (*Butt v. State of California* (1992) 4 Cal.4th 668, 678.) "Of course, '[t]he scope of available preliminary relief is necessarily limited by the scope of the relief likely to be obtained at trial on the merits." (*Ibid.*) "A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim." (*Ibid.*) The burden is on Plaintiffs, as the parties seeking injunctive relief, "to show all elements necessary to support issuance of a preliminary injunction." (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.) Primarily, in seeking a preliminary injunction, Plaintiffs assert the Deed of trust is defective and void. Plaintiffs offer the Declaration of Mrs. Cynthia Ticey, wherein she states that she "never executed or signed the Promissory Note for the WaMu Mortgage Plus™ loan," that "[t]he Deed of Trust (Exhibit 23-28) misidentifies me as 'Cynthia L. Di Meo,'" and that "the notarization is fraudulent." (See ¶2-¶3 of Cynthia Ticey Declaration [ROA No. 142].) Plaintiffs dispute the validity of the Deed of Trust, given the use of Mrs. Ticey's maiden name; however, Plaintiffs nonetheless concede that Mrs. Ticey signed the document. (See Motion: 3:26-28 [ROA No. 142] ["Cynthia L. Ticey, who signed only the Deed of Trust and not the Note…"].)

		Plaintiffs offer no authority which indicates the use of Mrs. Ticey's maiden name is material where, as here, she concedes having executed the document. Thereafter, Plaintiffs suggest, without authority, that Mrs. Ticey's exclusion from the Note renders the Deed of Trust void. "A note and deed of trust are separate instruments and need not contain all of the terms of the agreement between the parties." (*Kerivan v. Title Ins. & Trust Co.* (1983) 147 Cal.App.3d 225, 230.) "A note and deed of trust, although two instruments, form parts of one transaction and must be read and construed together." (*Ibid.*) While it is true that "[a] security interest cannot exist without an underlying obligation" (*Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1235), it is undisputed an underlying obligation exists, purportedly signed by Mr. Ticey. Absent authority which indicates a property owner cannot validly secure the debt of another, Plaintiffs have failed to meet their moving burden, as to this portion of the motion. "Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration." (*People v. Stanley* (1995) 10 Cal.4th 764, 793.) Moreover, the circumstances described by Plaintiffs suggest Mrs. Ticey guaranteed the debt: "The distinction between sureties and guarantors is hereby abolished…A surety or guarantor is one who promises to answer for the debt, default, or miscarriage of another, or hypothecates property as security therefor." (Civ. Code, § 2787; See also *Mead v. Sanwa Bank California* (1998) 61 Cal.App.4th 561, 567-568.) Plaintiffs have not established that status as a surety or guarantor, prevents enforcement of the Deed of Trust. Consequently, they have not shown entitlement to an injunction on this basis. In addition to the above, any claim that the Deed of Trust was fraudulently obtained, appears barred by the applicable statute of limitations: "To prevail on a claim to cancel an instrument, a plaintiff must allege and prove (1) the instrument is void or voidable; and (2) he or she has a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of their position." (*Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 900.) "An instrument may be void or voidable due to fraud in its enactment." (*Ibid.*) Applying the three-year statute of limitations for fraud (Code Civ. Proc., § 338), as Plaintiffs obtained the mortgage in 2007 (¶2 of SAC [ROA No.254 at 3:13-14]), the statute of limitations expired in 2010.

		While "[t]he discovery rule delays accrual until the plaintiff has, or should have had, notice of facts sufficient to put a prudent person on inquiry regarding his or her claim…[P]laintiffs are required to conduct a reasonable investigation after becoming aware of an injury, and are charged with knowledge of the information that would have been revealed by such an investigation." (*Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 900-901.) Plaintiffs offer no evidence which supports delayed discovery herein. Moreover, "a recorded written instrument that affects title to real property provides constructive notice of its contents." (*Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 901.) Had Plaintiffs investigated the title of their property, they would have discovered the Deed of Trust and, necessarily, would have known if any signature or notarization was fraudulent. Further, as previously noted by the Court, the claims arising from conduct by Washington Mutual are barred by the Financial Institutions Reform, Recover, and Enforcement Act of 1989 ("FIREA"). While Plaintiffs now assert they initiated compliance with FIRREA in 2021 (See Reply: 2:6-10 [ROA No. 276]), "[t]he FDIC published notices informing creditors that claims against WaMu had to be submitted to the FDIC by the end of December 2008." (*Saffer v. JP Morgan Chase Bank, N.A.*, *supra*, 225 Cal.App.4th at p. 1243.) "[C]laims filed after the date specified in the notice published…shall be disallowed and such disallowance shall be final." (12 U.S.C. § 1821(d)(5)(C)(i).) While courts have found this rule is not jurisdictional, it nonetheless establishes a bar herein: "[T]he time limits for submitting claims to the FDIC are 'claims processing rules' that are not jurisdictional, and thus may be subject to waiver, estoppel, or tolling." (*Saffer v. JP Morgan Chase Bank, N.A.*, *supra*, 225 Cal.App.4th at p. 1261 [internal quotations cleaned up.]) Plaintiffs have not established that waiver, estoppel or tolling apply. Next, Plaintiffs assert Defendant Chase mislabeled their loan, thereby causing significant damage to their credit. (Motion: 2:25-3:1 [ROA No. 142].) Plaintiffs assert this constitutes a violation of Civil Code section 1770 ("CLRA"). (Motion: 4:7-10 [ROA No. 142]); however, neither a claim based on Civil Code section 1770 or the "CLRA" more generally, could be located within the Second Amended Complaint. Necessarily, Plaintiffs cannot establish a probability of prevailing on a claim that is not alleged. "[O]rdinarily, a preliminary injunction may be sought only when the underlying cause of action on which the provisional remedy rests is presented for decision through the pleadings." (*Department of Fair Employment & Housing v. Superior Court* (2020) 54 Cal.App.5th 356, 384.)

Additionally, Plaintiffs did not offer clear evidence of the identified violation. To support this theory, Troy Ticey declares: “Chase’s mischaracterization of the loan as a HELOC, when WaMu never used that term, is demonstrated in the correspondence attached as (Exhibit 1-20)” (¶2 of Troy Ticey Declaration [ROA No. 142]); however, no exhibits were attached to the moving papers.

While Plaintiffs filed a Notice of Lodging on May 7, 2026, which referenced *several* exhibits, no exhibits were attached thereto. (See ROA No. 272.) A *similar* Notice of Lodging was filed on May 12, 2026, which purports to include exhibits therein; however, none are authenticated. (See ROA No. 279.) These same defects exist in the documents filed on August 28, 2026. (See ROA Nos. 286, 288, 292, 294 and 290.)

Thereafter, to demonstrate the loan has been mislabeled, Plaintiff Troy Ticey offers a screenshot of his “Experian credit-monitoring portal” which references a ‘$541,249 credit card balance.” (¶3-¶4 of Troy Ticey Declaration [ROA No. 146].) Plaintiff declares, essentially, that the above *must* be the result of Chase mislabeling the claim. (*Id.*) Thereafter, Plaintiff generally declares that his credit has been negatively affected. (¶5 of Troy Ticey Declaration [ROA No. 146].)

The above is insufficient to demonstrate Defendant Chase has engaged in misconduct, sufficient to support injunctive relief.

Next, Plaintiffs assert Defendant Chase failed to comply with a statutory 15-Day Demand which required “immediate validation of the debt and cessation of all collection activities due to the non-signer status and void lien.” (Motion: 2:3-5 [ROA No. 142].) Per Plaintiffs “Chase’s failure to produce the mandatory loan documents within the statutory 15-day period, as required by law, is a self-proving violation that justifies a finding of non-compliance and supports rescission and damages.” (Motion: 10:7-10 [ROA No. 142].)

The Motion does not identify the relevant statute; however, an attached exhibit indicates Plaintiffs are referring to Civil Code section 1788.52. (See Exhibit “15 Day 1” in ROA No. 141.) With respect to the same, the Declarations of Troy Ticey offered herein do not establish a clear violation of the cited provision. While Mr. Ticey declares: “I have never received disclosures, loan terms, or any explanation of the alleged debt.” (¶5 of Troy Ticey Declaration [ROA No. 142]), the above statement is vague and does not line up with the requirements of Civil Code section 1788.52.

Additionally, the Second Amended Complaint does not allege a violation of Civil Code section 1788.52.

Plaintiffs put forth several additional arguments, which the Court will not examine at length, given they are not pled in the Second Amended Complaint. Included within this category are assertions Defendant violated the Federal Credit Reporting Act (15 U.S.C. § 1681s-2(b)), as well as Civil Code sections 2932.5, 2923.5, 2924.17 or 2923.6.

		Moreover, briefly, the Court notes that the portion of the FCRA cited and relied on by Plaintiffs offers *damages*, which does not demonstrate a threat of irreparable harm, such as to justify a preliminary injunction. (See *Pinson v. JPMorgan Chase Bank, National Association* (11th Cir. 2019) 942 F.3d 1200, 1212.) Additionally, the Court notes that "[s]ection 2932.5 is inapplicable to deeds of trust." (*Orcilla v. Big Sur, Inc.* (2016) 244 Cal.App.4th 982, 1003.) Finally, neither the California Consumer Credit Reporting Agencies Act ("CCRAA") nor specifically Civil Code section 1785.25 is referenced within the initial motion. (See ROA No. 142.) However, passing references are included within the Supplemental Motion. (See ROA No. 139 at 4:14-16 and 7:19-21.) Per the California Consumer Credit Reporting Agencies Act ("CCRAA"), "[a] person shall not furnish information on a specific transaction or experience to any consumer credit reporting agency if the person knows or should know the information is incomplete or inaccurate." (Civ. Code, § 1785.25, subd. (a).) Plaintiff Troy Ticey declares that, beginning on or around October of 2025, Chase misreported the account status as "past due" despite his having made full and timely payments. (¶5 of Ticey Declaration [ROA No. 146] and ¶7 of Ticey Declaration [ROA No. 141].) More specifically, citing 30, 60 and 120-day delinquencies included within an Experian Credit Report, Plaintiff asserts these reports were made "despite full and timely payments." (¶5 of Ticey Declaration [ROA No. 146] and ¶7 of Ticey Declaration [ROA No. 141].) The same attached report lists payments in the amount of $3,226 and $3,268, in October and November of 2025. (¶7 of Ticey Declaration and "ON TIME" attachment thereto [ROA No. 141].) While Plaintiff declares that "full" payments were made, the same is unclear, as the Experian reports includes *multiple* payment amounts, ranging between $3,010 and $3,868. (¶7 of Ticey Declaration and "ON TIME" attachment thereto [ROA No. 141].) Of note, within the Second Amended Complaint, Plaintiffs allege Defendant misrepresented that "Plaintiffs could 'adjust to fixed anytime.'" (See SAC 42:10 [ROA No. 254].) This allegation suggests the relevant loan has an adjustable interest rate. Absent evidence concerning the amounts owed between October and December of 2025, it is not clear that "full" payments were made, such as to render the identified delinquencies inaccurate. Consequently, it is not clear Plaintiffs have established a violation of the CCRAA.

		Additionally, regardless, the CCRAA assumes violations can be measured in monetary damages. (*See, e.g.,* Civ. Code, § 1785.31.) While the CCRAA allows for injunctive relief (See Civ. Code, § 1785.31, subd. (b)), it is not clear *what* injunctive relief could be issued, at this time: Plaintiffs request the Court issue an order enjoining Defendant from "[r]etaining or disseminating any derogatory credit information relating to Plaintiffs…." (Motion: 11:11-13 [ROA No. 142].) However, this language is overbroad as it would prevent Defendant from reporting *future* delinquencies. Moreover, as indicated above, it is not clear that Plaintiffs are fully current on the loan. At best, Plaintiffs declare that payments were made in October through December of 2025. Based on the above, Plaintiffs' request for an order enjoining Defendant from "[i]nitiating, recording, or pursuing any foreclosure activity," is likewise overbroad. (Motion: 11:11-13 [ROA No. 142].) Further, there has been no showing that a foreclosure has commenced. In addition to seeking a preliminary injunction, Plaintiffs request multiple forms of additional relief, including: (1) An order cancelling or removing the Deed of Trusts, pursuant to Civil Code sections 3412 and 3413, as to Plaintiff Cynthia L. Ticey. (Motion: 3:18-22 [ROA No. 142]); (2) Financial Elder Abuse remedies under Welfare & Institutions Code sections 15610.30 and 15657.5 (Motion: 6:26-27 [ROA No. 142]); and (3) Punitive damages. (Motion: 6:28 [ROA No. 142]; See also "Prayer for Relief" at 10:22-12:3 [ROA No. 142].) Plaintiffs have cited no authority that allows for any such relief, provisionally. The Case Management Conference is continued to December 03, 2026, at 09:00 am in Department C10. Moving Party to give notice.
4	G. vs. Los Alamitos Unified School District	This case is part of the pilot Dedicated Discovery Department Program. As set forth below, all pending discovery motions are set for an Informal Discovery Conference (IDC) before Judge Andre De La Cruz. To the extent the discovery motions are not resolved through the IDC process, the motions are assigned to and will be heard by Judge De La Cruz at the Costa Mesa Justice Complex in Department CM02. The case otherwise shall remain assigned to the presently assigned judicial officer for all purposes, including trial.

		All parties involved in the discovery dispute are ordered to appear at an Informal Discovery Conference, scheduled at the same time as all pending discovery motions, as follows: **Motion to Compel Responses to Special Interrogatories, Set One (ROA #149) is continued to 09/30/2026 at 09:00 AM in Department CM02.** On the foregoing date, the discovery motion(s) will be set for calendaring purposes only; ***no hearing on the merits*** will be conducted at that time. The parties shall not file any opposition or reply briefs prior to the IDC. The only document relating to the motion(s) to be filed prior to the IDC is a joint letter brief. At the conclusion of the IDC, if the motion(s) is/are not fully resolved, the Court will set a hearing date for the motion(s) and a briefing schedule for the opposition and reply briefs. The parties are ordered to file ***a single*** joint letter brief ***not to exceed*** four pages, inclusive of any header and signatures, which summarizes all pending discovery disputes. The joint letter brief shall: 1. Be submitted in letter format; 2. Single spaced, with no less than 11-point font and standard 1-inch margins throughout, ***3. Not* in pleading form**. 4. Counsel ***must*** attest that counsel met and conferred in person, by phone, or by videoconference, to include the date and length of the meeting; and 5. Concisely summarize all issues that counsel were unable to resolve. The parties may not file multiple joint letter briefs irrespective of the number of disputes then at issue. If there are multiple disputes at issue, the parties may provide a list of disputes as part of the joint letter brief. The joint letter brief may cite to limited and specific legal authority only for resolution of dispositive issues. The joint letter brief may not be accompanied by declarations or exhibits. The parties shall file the joint letter brief ***no less than*** five (5) court days prior to the IDC. Counsel are ordered to appear ***in person*** for the IDC. Counsel appearing at the IDC must have authority to fully resolve all discovery issues in dispute. ***Failure to adhere to this Order will subject the parties and/or counsel to sanctions pursuant to the Code of Civil Procedure Sections 128.5 and/or 177.5.*** Court orders Clerk to give notice.

5	Douglas vs. Regents of the University of California	Defendants The Regents of the University of California, Julius Edson, Daniela Bota, Aimee Edinger, Ed Monuki, Elizabeth Head, Claudia Benavente, Young Jik Kwon, Elizabeth Rome, Shannon Kotter, Hillel Adesnik, David Fruman, and Christopher Hughes demur to the Second Amended Complaint ("SAC") filed by Plaintiff Christopher Ryan Douglas. For the following reasons, the demurrer is SUSTAINED WITH LEAVE TO AMEND. Should Plaintiff wish to file a Third Amended Complaint, he shall do so by September 24, 2026. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (C*undiff v. GTE Cal., Inc*. (2002) 101 Cal.App.4th 1395, 1404-05.) Defendants' request for judicial notice is GRANTED. (See *Regents of Univ. of Calif. v. City of Santa Monica* (1978) 77 Cal.App.3d 130, 135; see *Mendoza v. The Regents of the University of California* (1978) Cal.App.3d 168, fn. 3 [judicial notice of the Regents' policies is appropriate]; *People v. Lofchie* (2014) 229 Cal. App. 4th 240, 260.) <u>Dismissals</u> In his opposition, Plaintiff voluntarily dismissed Defendants Hillel Adesnik, Shannon Kotter, Elizabeth Rome, Christopher Hughes and Young Jik Kwon from this action without prejudice. (Opp. at 6:2-4; 26:8-11.) Thus, these defendants are hereby dismissed with prejudice. Plaintiff also agreed to dismiss the RICO claim. (Opp. at 16:3.) This claim is dismissed without prejudice. Plaintiff agreed to withdraw the Bane Act claim. (Opp. at 15:27.) This claim is dismissed without prejudice. Plaintiff agreed to dismiss the claim for negligent infliction of emotional distress. (Opp. at 24:21.) This claim is dismissed without prejudice. Plaintiff agreed to waive the cause of action for breach of the implied covenant of good faith and fair dealing. (Opp. at 23:4-6.) Plaintiff also agreed to waive the claim under Labor Code 1102.5. (Opp. at 23:6-8; see also Opp. at 25:16-17 ["Plaintiff is willing to voluntarily dismiss the Claims for Whistleblower Retaliation and RICO, provided leave is granted to amend…"].) These claims are dismissed without prejudice.

		<u>First cause of action</u> The first cause of action is styled, "Attempted Civil Extortion, Extortion, Commercial Bribery, Civil Rights Interference, Witness Tampering, and Conspiracy (Including RICO Predicate Acts, California Unfair Competition Law, Proposition 64, and Bane Act Violations, and Prior Misconduct Creating a Hostile Environment." (SAC at 50:17-21.) Plaintiff appears to assert numerous theories against Defendant into one cause of action, including extortion, bribery, violation of California unfair competition law, and violation of the Bane Act. This is a proper basis upon which to sustain a special demurrer. (*Campbell v. Rayburn* (1954) 129 Cal.App.2d 232, 235 ["A further consideration is that the special demurrer was properly sustained because the complaint was defective in that two purported causes of action were not separately stated."].) Plaintiff has also agreed to dismiss portions of this cause of action, including the Bane Act clam and the RICO claim. Further, Defendants have shown that public entities, including Defendant Regents and its employees, are immune from liability for common law tort claims such as unless the legislature expressly provides for such liability. (Gov. Code, §§ 815(a) and 820.2; *McCarty v. State of California Dept. of Transp.* (2008) 164 Cal.App.4th 955, 977 ["a public entity cannot be held liable for common law negligence"]; *Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 899 [Subject to certain exceptions, Government Code section 815 "abolishes common law tort liability for public entities."].) The demurrer to this cause of action is sustained. <u>Second cause of action</u> The second cause of action is styled, "Violation of California Government Code §§ 11135 et seq. and 12940 et seq., and California Code Regs., Title 2, § 14071 — Discrimination and Retaliation." (SAC at 63:8-10.) Plaintiff has agreed to dismiss this cause of action as to the individual Regents Defendants. Under the Fair Employment and Housing Act ("FEHA"), exhaustion of administrative remedies is "a jurisdictional prerequisite to resort to the court." (*Johnson v. City of Loma Linda* (2000) 24 Cal.4th 61, 70 (internal quotes omitted*); see Campbell v. Regents of Univ. of Calif*. (2005) 35 Cal.4th 311, 321.) Therefore, failure to file an administrative charge before commencing suit is ground for dismissal of an action for violation of the FEHA. (*Okoli v. Lockheed Technical Operations Co*. (1995) 36 Cal.App.4th 1607, 1613; *Martin v. Lockheed Missiles & Space Co., Inc.* (1994) 29 Cal.App.4th 1718, 1724.) The SAC does not allege Plaintiff exhausted his administrative remedies. Plaintiff's Opposition attaches a letter to address this issue, but that is

		beyond the scope of a demurrer, which addresses only the operative pleading and material that is subject to judicial notice. The demurrer to this cause of action is sustained with leave to amend. <u>Third cause of action</u> The third cause of action is styled, “defamation, civil conspiracy, and tortious interference.” As discussed previously in connection with the first cause of action, this cause of action is uncertain because it combines three causes of action into one. Further, as discussed previously, Government Code Sections 815 and 820.2 establishes immunity against common law tort liability for public entities such as the Regents and its employees. The demurrer to this cause of action is sustained with leave to amend. <u>Fourth cause of action</u> The fourth cause of action is for breach of the implied covenant of good faith and fair dealing. As noted previously, Plaintiff agreed to waive the cause of action. “The covenant of good faith and fair dealing, implied by law in every contract, exists merely to prevent one contracting party from unfairly frustrating the other party's right to receive the benefits of the agreement actually made. It cannot impose substantive duties or limits on the contracting parties beyond those incorporated in the specific terms of their agreement.” (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 349.) To succeed on a claim for breach of the implied covenant of good faith and fair, a valid contract must exist between the parties. (*Racine & Laramie, Ltd. v. Department of Parks & Recreation* (1992) 11 Cal.App.4th 1026, 1031-1032.) Plaintiff has not alleged a valid contract or breach thereof by moving Defendants. The demurrer to this cause of action is sustained with leave to amend. <u>Fifth cause of action</u> The fifth cause of action is for whistleblower retaliation under California labor code § 1102.5. As noted previously, Plaintiff agreed to waive this claim. (Opp at 23:9.) The demurrer to this cause of action is sustained with leave to amend. <u>Sixth cause of action</u>

The sixth cause of action is for negligent and intentional infliction of emotional distress. Plaintiff concedes that the claim for negligent infliction of emotional distress should be dismissed. (Opp. at 24:21.) Further, Defendants have shown that they are immune from tort liability and a claim for intentional infliction of emotional distress is a tort. Finally, Defendants have shown that the workers' compensation exclusivity rule bars this claim. (*Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876.)

The demurrer to this cause of action is sustained with leave to amend.

a. Seventh cause of action

The caption of the SAC refers to a seventh cause of action for declaratory, injunctive, and equitable relief. (SAC at 2:7.) However, the SAC does not actually contain a seventh cause of action. Instead, after the sixth cause of action, the SAC contains an "executive summary" and then a section entitled, "Nonmonetary; Declaratory or Injunctive Relief." (SAC at pp. 82-84.) Plaintiff's Opposition seems to recognize that this is not a cause of action by identifying it as a "prayer for injunctive and declaratory relief" rather than a cause of action. (Opp. at 24:23.)

In this "nonmonetary" section, the SAC alleges:
260. Plaintiff requests an order declaring that Defendants, including the Regents of the University of California, violated the Public Records Act and engaged in a pattern of misconduct designed to obstruct justice, interfere with investigations, and spoil evidence.
261. Based on (260), the plaintiff requests an order permitting expanded discovery, including the imposition of appropriate sanctions, against Defendants for willful non compliance, concealment, or misattribution of records.
262. Plaintiff requests a public injunction prohibiting the Regents of the University of California, and their agents, representatives, or affiliates, from engaging in discrimination, harassment, retaliation, or other adverse actions against students, employees, or former employees based on protected status, free expression, whistleblower activity, or protected disclosures.
263. Plaintiff requests any other declaratory, injunctive, or equitable relief the Court deems just and proper to prevent future harm and ensure compliance with applicable laws, including but not limited to remedies that safeguard access to institutional systems, academic opportunities, and procedural protections.

(SAC, ¶¶ 260-263.)

To qualify for declaratory relief, Plaintiff is required to show two essential elements: "(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party." (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546.)

Plaintiff seeks declaratory relief in the form of a declaration that Defendants violated the Public Records Act. However, as discussed previously, the

		demurrer to the remainder of Plaintiff's SAC is sustained. Thus, there is currently no valid basis for declaratory relief. And Plaintiff's Opposition states, "The plaintiff waives the request for injunctive relief." (Opp. at 25:2.) The demurrer to this cause of action is sustained with leave to amend. On a demurrer, a court determines whether the complaint states facts sufficient to constitute a cause of action. If the court sustains the demurrer, it must decide whether to grant leave to amend. Leave to amend should be granted if there is a reasonable possibility that the defect can be cured by amendment. Plaintiff has the burden of proving that there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) This is the first pleadings challenge on which the Court has ruled. Thus, the Court grants Plaintiff leave to amend. Moving Defendants shall file and serve notice of this ruling.
6		
7	Doe K.N. vs. Orangewood Academy	The motion to strike by Southeastern California Conference of Seventh-Day Adventists dba Orangewood Academy ("SCC") to the second amended complaint ("SAC") by Plaintiff Jane Doe K.N. is **GRANTED** without prejudice to Plaintiff's requesting leave to amend in the future to allege punitive damages in compliance with Code of Civil Procedure section 425.14. The court makes no substantive findings as to whether or not future leave will be granted and/or whether or not future leave is proper, but simply clarifies that this ruling has no bearing on Plaintiff's *ability* to seek leave to amend to allege punitive damages in the future. A motion to strike punitive damages is properly granted where a plaintiff does not state a prima facie claim for punitive damages, including allegations that defendant is guilty of oppression, fraud or malice. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63; Cal. Civ. Code § 3294(a).) Defendant SCC argues that Plaintiff has failed to sufficiently allege the requirements of section 425.14, which states: "No claim for punitive or exemplary damages against a religious corporation or religious corporation sole shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes such a claim to be filed." The court may allow the filing of an amended pleading claiming punitive or exemplary damages on a motion by the party seeking the amended pleading and upon a finding, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established

		evidence which substantiates that the plaintiff will meet the clear and convincing standard of proof under Section 3294 of the Civil Code." (Code Civ. Proc. § 425.14). Plaintiff filed a notice of non-opposition, contending that Plaintiff does not oppose granting SCC's motion to strike at this time. However, Plaintiff argues it has in the process of gathering declarations to obtain evidence sufficient to comply with section 425.14 and should be given the opportunity in the future to amend to allege compliance. Given Plaintiff's non-opposition and, therefore, implied concession that the SAC, as currently pled, does not comply with section 425.14, the motion is GRANTED. The Case Management Conference is continued to December 03, 2026 at 09:00 am in Department C10. Moving Defendant to give notice.
8	Aimar vs. LA Roofing & Builder Group, Inc.	The demurrer by Defendant Bumble Roofing of LA, LLC ("Bumble 110") to the first through sixth causes of action by Plaintiffs David Aimar and Theresa Golden are **OVERRULED**. <u>Legal Standard on Demurrer</u> A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (*Lambert v. Carneghi* (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (Code Civ. Proc., § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. The degree of detail required depends on the extent to which the defendant in fairness needs such detail which can be conveniently provided by the plaintiff. Less particularity is required when the defendant ought to have co-extensive or superior knowledge of the facts. Under normal circumstances, there is no need for specificity in pleading evidentiary facts. However, bare conclusions of law are insufficient. (Code Civ. Proc., §§ 425.10(a), 459; *Doe v. City of Los*

Angeles (2007) 42 Cal.4th 531, 549-50; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1126; *Doheny Park Terrace HOA v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1098-99; *Berger v. California Insurance Guarantee Assn* (2005) 128 Cal.App.4th 989, 1006.)

<u>Sixth Cause of Action for Fraud and Fifth Cause of Action for Breach of Contract</u>

"A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud. [Citations.]" (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1060). "Thus, in a promissory fraud action, to sufficiently alleges defendant made a misrepresentation, the complaint must allege (1) the defendant made a representation of intent to perform some future action, i.e., the defendant made a promise, and (2) the defendant did not really have that intent at the time that the promise was made, i.e., the promise was false." (*Id*.)

Moving Defendant argues that Plaintiff did not sufficiently allege a cause of action for false promise. Moving Defendant argues that although Plaintiff alleges that Plaintiff first received a proposal (Ex. A to the First Amended Complaint) from Moving Defendant Bumble Roofing of LA, LLC ("Bumble 110"), which contained Moving Defendant Bumble 110's contractor's license number, the proposal is not a contract. As such, Moving Defendant argues that the terms of the actual agreement (Ex B to the First Amended Complaint), which then switched the entity to LA Roofing & Builder Group, Inc. d/b/a Bumble Roofing ("Bumble 106"), and contained the contractor's license of Bumble 106 and not Bumble 110, controls. Moving Defendant Bumble 110 then argues that there was no enforceable contract between Plaintiff and Bumble 110—the actual contract that was formed was with Bumble 106.

Here, the court disagrees with the Moving Defendant and finds that Plaintiff sufficiently pled a cause of action for false promise. Plaintiff alleges the inconsistencies between the proposal and the agreement. Plaintiff also alleges that Bitan was the sole owner of both Bumble 106 and Bumble 110 and that both Bumble 106 and Bumble 110 were known as Bumble Roofing to the public. Plaintiff also alleges the intent of the alleged false promise—"BITAN had formed BUMBLE ROOFING 110 with the intent of dissolving BUMBLE ROOFING 106. As a result, BITAN wanted the Agreement to reflect the soon to be defunct BUMBLE ROOFING 106's license number rather than BUMBLE ROOFING 110's license number. This confusion regarding which BUMBLE DEFENDANT Plaintiffs were contracting with was intended to, and in fact did, deceive Plaintiffs." (FAC at ¶ 82). The allegations are sufficient to put Defendants on notice of the basis of Plaintiffs' fraud cause of action—i.e., that Plaintiff relied on the representations of Bitan that Plaintiff was contracting with a viable company, that Bitan first induced Plaintiff with a proposal from Bumble 106, but then Bitan then presented a contract that actually named Bumble 110 as the contractor, even though Bitan intended to dissolve Bumble 110 and made it defunct and uncollectable.

		Plaintiffs also sufficiently alleges that Bumble 110 was a mere conduit of Bumble 106 and/or was the successor of Bumble 106. Plaintiffs also sufficiently allege that Bitan was the alter ego of both Bumble 106 and Bumble 110. Courts have expanded the alter ego theory to apply to other corporations under a mere conduit/single business enterprise theory. (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 Cal.App.4th 1096, 1107–1108). "A court may also disregard the corporate form in order to hold one corporation liable for the debts of another affiliated corporation when the latter 'is so organized and controlled, and its affairs are so conducted, as to make it merely an instrumentality, agency, conduit, or adjunct of another corporation.'" (*Id.*) "Under the 'single business enterprise' doctrine, separate corporations may operate with integrated resources in pursuit of a single business purpose." (*Id.*) "The 'single-business-enterprise' theory is an equitable doctrine applied to reflect partnership-type liability principles when corporations integrate their resources and operations to achieve a common business purpose." (*Id.*) Alter ego and/or the mere conduit/single business enterprise theory, therefore, seek to how the "equitable owner" responsible when the corporate form is sued to perpetuate a fraud, circumvent a statute, or accomplish some other wrongful or inequitable purpose. (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538). Further, under a separate theory, successor liability is an equitable doctrine that applies when a purchasing corporation is merely a continuation of the selling corporation, or the asset sale was fraudulently entered to escape debts and liabilities. (See *Brown Bark III, L.P. v. Haver* (2013) 219 Cal.App.4th 809, 822.) To invoke successor liability, the rule states that the purchaser does not assume the seller's liabilities unless (1) there is an express or implied agreement of assumption; (2) the transaction amounts to a consolidation or merger of the two corporations; (3) the purchasing corporation is a mere continuation of the seller; or (4) the transfer of assets to the purchaser is for the fraudulent purpose of escaping liability for the seller's debts. (*Cleveland v. Johnson* (2012) 209 Cal.App.4th 1315, 1327). In terms of pleading, a party is required "to allege only 'ultimate rather than evidentiary facts'" to allege alter ego. (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 236). For example, the following allegations have been found to be sufficient to plead alter ego liability: "Rutherford alleged that Caswell dominated and controlled PDR; that a unity of interest and ownership existed between Caswell and PDR; that PDR was a mere shell and conduit for Caswell's affairs; that PDR was inadequately capitalized; that PDR failed to abide by the formalities of corporate existence; that Caswell used PDR assets as her own; and that recognizing the separate existence of PDR would promote injustice." (*Id*. at 235-236).

		Here, Plaintiffs have sufficiently pled these vicarious liable theories, that if proven, could hold each of the defendants responsible for each other's actions under the *Rutherford* standard. For this reason, the demurrer to the fifth and sixth causes of action is OVERRULED. <u>First Cause of Action for Breach of Contract, Second Cause of Action for Breach of Express Warranty, Third Cause of Action for Breach of Implied Warranty, and Fourth Cause of Action for Strict Liability</u> Moving Defendant argues that because there was no enforceable agreement between Plaintiffs and Bumble 110, each of these causes of action fail. As the court explains above, Plaintiffs have sufficiently alleged mere/conduit, single business enterprise, successor, and/or alter ego theories to hold Bumble 110 liable for agreements and liabilities of Bumble 106. For this reason, the demurrer to the first through fourth causes of action are OVERRULED. Moving Defendant to give notice.
9	Alayarian Company, a California Corporation vs. VMA Harbor Place Holding Company, LLC	Defendant/Cross-Complainant, VMA HARBOR PLACE HOLDING COMPANY, LLC's ("Defendant") motion to compel Plaintiff Alayarian Company dba Cinderella Cakes' (ROA 66) and Plaintiff Sam Alayarian's (ROA 67) responses to Requests for Production of Documents, Sets One is **GRANTED**. (Code of Civ. Proc. § 2031.300, subds. (a)-(c).) Accordingly, Plaintiff Alayarian Company dba Cinderella Cakes and Plaintiff Sam Alayarian are ORDERED to provide verified, objection-free responses to Defendant's Requests for Production of Documents, Sets One, that were served on December 5, 2025 within 20 days' notice of this ruling. The Court GRANTS Defendant's request for sanctions, in a reduced amount. Plaintiff Alayarian Company dba Cinderella Cakes and Plaintiff Sam Alayarian are each ordered to pay sanctions to Defendant in the amount of $860.00. (See Code Civ. Proc., § 2031.300, subd. (c); See also Code Civ. Proc., § 2023.030, subd. (a) and § 2023.010, subd. (d).) Sanctions to be paid within 30 days' notice of this ruling. Defendant to give notice.
10	Harang Co. vs. Vestand Inc.	Defendant Vestand Inc.'s motion to set aside default is **GRANTED**. Defendant shall separately file the answer attached as Exhibit 5 to the declaration of counsel within 10 days. Defendant's objections nos. 1, 2, and 3 are SUSTAINED for lack of foundation. <u>General Authority</u>

		Defendant moves to set aside the default and default judgment pursuant to Code Civ. Proc. § 473, subd. (b), and Code Civ. Proc. § 473.5. Code Civ. Proc. § 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of "mistake, inadvertence, surprise or excusable neglect." "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." Cal. Civ. Proc. Code § 473(b)). Code Civ. Proc. § 473.5 provides for relief when service "has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action." (Code Civ. Proc. § 473.5(a)). The notice of motion shall be served and filed "within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered." (Code Civ. Proc. § 473.5(a).) The motion "shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect." (Code Civ. Proc. § 473.5(b).) Merits Here, default was entered on 6/22/26, and Defendant brought the instant motion on 7/15/26. Accordingly, it is timely pursuant to both Code Civ. Proc. §§ 473(b) and 473.5. Plaintiff's registered process server served Defendant via substitute service by leaving the documents with "John 'Jay' Doe" on 3/24/26 at the Defendant's address, which is also the residential address of Ji-Won Kim. Mr. Kim is Defendant's registered agent for service of process as well as the chief executive officer, chief financial officer and secretary. Plaintiff's process server then served the documents via mail service on 3/25/26. (See Notice of Errata, Ex. 9; see also Code Civ. Proc. § 415.20 [substitute service requirements]). Code Civ. Proc. § 473.5 requires that a motion made under this section shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. Here, Mr. Kim provided a

		declaration stating as follows: On 3/24/26, he was out of the country and not in the Vestand Office on Apple Blossom Circle in Brea. (Decl. of Kim, ¶ 3). As of 3/24/26, Vestand did not have any employees or officers named John or Jay. (Decl. of Kim, ¶ 5). He was not aware of the lawsuit entitled *Harang Co. v. Vestand, Inc.* until his office informed him of the lawsuit on 6/29/26. Prior to this date, he never received a copy of the summons or complaint. (Decl. of Kim, ¶ 6). The circumstances surrounding this case do not involve any avoidance or service or inexcusable neglect on the part of Vestand. He has never evaded, or attempted to evade service. (Decl. of Kim, ¶ 7). Finally, he declares: “I am not aware of Vestand ever being served with the complaint and/or summons in the Vestand lawsuit. If it was, however, the summons and complaint must have inadvertently been misplaced without realizing what the documents were.” (Decl. of Kim, ¶ 8). Defendant also provides the declaration of Sandy Uhm, who is a business manager for Vestand. She declares: on 3/24/26, she was working at the Vestand office, as were Brian Park, Taylor Yoon, Jina Choi and Diana Han. Vestand did not have any employees matching the description in the proof of service of a 35 year old, 5’9”, 190-pound Asian male at this office. (Decl. of Uhm, ¶ 3). She was not served with the complaint or summons. (Decl. of Uhm, ¶ 4). She is not aware of anyone else being served with the complaint and/or summons. (Decl. of Uhm, ¶ 4). To the best of her knowledge, Vestand never received a copy of the complaint or summons in the Harang Lawsuit in the mail. (Decl. of Uhm, ¶ 5). She was not aware of the Harang Lawsuit until Vestand received a Request for Entry of Default in the mail on or about June 29, 2026. (Decl. of Uhm, ¶ 6). The circumstances surrounding this case do not involve any avoidance of service or inexcusable neglect on the part of the Vestand. She has never evaded, or attempted to evade, service. (Decl. of Uhm, ¶ 7). Brian Park also declares that Vestand did not have any employees matching the description in the proof of service. (Decl. of Park, ¶ 4). He declares that on 3/24/26, he was working at the Vestand office, as were Sandy Uhm, Taylor Yoon, Jina Choi and Diana Han. (Decl. of Park, ¶ 5). He was not served with the complaint or summons. (Decl. of Park, ¶ 6). He was not aware of the Harang Lawsuit until Vestand received a Request for Entry of Default in the mail on or about June 29, 2026. (Decl. of Park, ¶ 7). The circumstances surrounding this case do not involve any avoidance of service or inexcusable neglect on the part of the Vestand. He has never evaded, or attempted to evade, service. (Decl. of Park, ¶ 8). Finally, Taylor Yoon provides a declaration, stating the following: she is the operations manager for Vestand Inc. (Decl. of Yoon, ¶ 2). On March 24, 2026, she was working at the Vestand Office, as were Brian Park, Sany Uhm, Jina Choi, and Diana Han. (Decl. of Yoon, ¶ 3). She was not served with the complaint and/or summons. (Decl. of Yoon, ¶ 4). She was not aware of the Harang Lawsuit until she was informed of the lawsuit on or shortly after June 29, 2026. (Decl. of Yoon, ¶ 5).

Finally, in support of Defendant's Reply, Defendant also attaches Mr. Kim's travel history which shows that he was out of the country from 12/26/25 until 5/28/26. (Decl. of Kim ISO Reply, Ex. 6).

Defendant attached a copy of its proposed answer to the motion. (Decl. of Lawrence, ¶ 6, Ex. 5).

In its Opposition, Plaintiff submits the declaration of attorney Calvin Myung who declares that Mr. Kim also goes by the name "Jay Kim." (Decl. of Myung, ¶ 8). He declares that the summons and complaint were served at Mr. Kim's residential address. (Decl. of Myung, ¶ 9). Then, counsel contends without any evidence that the Apple Blossom Circle address "was not operating as a business."

Plaintiff's evidence does not dispute the evidence or arguments set forth by Defendant. Defendant has established that Mr. Kim was out of the country. Furthermore, the proof of service attests to substitute service, not personal service/service to the agent for service of process (in this case, Mr. Kim). Defendant has established that no one fits the description of the individual in the proof of service, and Plaintiff did not submit any evidence negating this fact. Defendant submitted a declaration from multiple employees/managers who attested that no one received service of the complaint or summons, and was not aware of this action until entry of default. Again, Plaintiff did not submit evidence contesting this fact, or a declaration from the process server. Rather, Plaintiff contends that Mr. Kim "must have known" about the pending litigation because Plaintiff had been attempting to exercise his rights under the warrant agreements (the basis for the lawsuit). The court rejects this argument.

Finally, Plaintiff argues that Defendant improperly brought this motion under Code Civ. Proc. § 473.5 when it should have brought this motion as a motion to quash service. Plaintiff also argues that Defendant cannot assert alternative theories under Code Civ. Proc. §§ 473.5 and 473(b) because they are inconsistent.

First, a motion to quash pursuant to Code Civ. Proc. § 418.10 requests entirely different relief than a motion to set aside default. Defendant is not asking this court to quash service of the summons and complaint. Defendant is only requesting that the court set aside default. Code Civ. Proc. § 473.5 expressly permits a court to set aside default where "service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action." (Code Civ. Proc. § 473.5, subd. (a)).

With regards to Defendant's "alternate" theories, the court finds that they are not inconsistent. Defendant asserts, and submitted evidence to establish, that service did not result in actual notice to Defendant. However, <u>if</u> it were shown that Defendant was given notice of the action via service, Defendant submitted declarations to the effect that it must have inadvertently lost or

		misplaced the summons and complaint because the declarants have no recollection of ever receiving the documents. These contentions, and the evidence submitted in support thereof, are not incompatible. The court finds that Defendant has established that service of summons and the complaint did not result in actual notice in time to defend the action. Accordingly, the motion is GRANTED. The Case Management Conference is continued to December 03, 2026, at 09:00 am in Department C10. Defendant shall give notice.